TROPICANA ACADEMY SDN BHD (469000-W)
Unit A3-01, Block A, Tropicana Merchant Square,
No. 1, Jalan Tropicana Selatan 1, PJU 3,
47410 Petaling Jaya, Selangor Darul Ehsan
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STUDENT RECRUITMENT AGENT AGREEMENT

This agreement is made on the 26 May 2025 between;

Tropicana Academy Sdn.Bhd. a private company incorporated in Malaysia pursuant to the Companies Act, 1965 and having its place of business at **Unit A-3A-01 Block A, Tropicana Merchant Square, No.1 Jalan Tropicana Selatan 1, PJU 3, 47410 Petaling Jaya, Selangor**, (*Hereinafter referred to as the Academy*) of the one part and;

V-International Marketing & Business Services Co., Ltd. (V-Intl), a private Limited company incorporated in Hanoi, Vietnam, having its place of business at **7th Floor, ATS Building, 252 Hoang Quoc Viet Street, Bac Tu Liem District, Hanoi, Vietnam.** (*Hereinafter referred to as Agent*) of the other part.

Now it is MUTUALLY AGREED AS FOLLOWS:-

1. This agreement shall be valid for 3 years from commencing date of 26 May 2025 and expires on 31 May 2028.

2. Course : All courses and programmes offered within the scope of The Academy and/or its subsidiary Academies and Learning Centres.

3. Enrolment Pre-Requisite :
3.1 - International Students from 18 years old to 30 years old
3.2 - O-Levels or Year 11 equivalent *(for International students)*
3.3 - School Leaving Certificate
3,4 - Competent in Literacy, Numeracy and Interest
3.5 - English Competency (able to speak, write and comprehend)

4. Registration * Fees : US$ 700.00 per student to be paid directly to the Academy. *(Registration fee is non-refundable)*.
** This registration fee is not applicable to Work-Based Learning programmes which has a different scale and fee structure. Refer to Attachment B*

5 No. of Trainees : 25 students per class *(minimum of 15 students to start a class)*
This applies to certain less popular courses only.

6. Agent Commission : The agent commission is due when all relevant documents (original or certified true copies) are received and acknowledged by the Academy and **course fees are fully paid**. Where tuition fees are paid by instalment stages, the agent commission shall be paid at a pro-rated sum not exceeding the fees collected. Agent commission when due shall be settled within 30 days upon invoicing. All fees and commissions are transacted based on the Ringgit Malaysia (RM) sum. Fees quoted in US Dollar is subjected to the prevailing currency conversion rates

7. Fee Refund Policy *(for students)* **:** All fees paid are non-refundable. However, if a student decides to cancel his/her registration, with written notice prior to the course starting date, the following applies;

1. More than 30 days' notice - 50% of course fees
2. More than 21 days' notice - 20% of course fees
3. Less than 21 days prior to the course starting date, strictly no refund.

Note: Registration fees are non-refundable. All refundable fees are subjected to an administration charge of US$ 250.00

The Agent shall not receive any commission when their referred student withdraws from the course at any stage of the entire course duration. The Academy may consider to compensate to the Agent a pro-rated sum *(commission)* based on the percentage of course fees paid.

8. **Marketing Expenses** : The Agent shall not be entitled to any form of reimbursement or make claims for any expenses incurred while carrying out its obligations under this Agreement.

9. **Agent's Obligations** **:** 9.1 - Promptly bring to the attention of the Academy of any breach or misuse of Intellectual Property owned by the Academy.

9.2 - To deliver your Services in a proper and professional manner with the best interests of the Academy and its students and to protect the good name and reputation of the Academy.

9.3 - Do not share any confidential information, students' details, policies and procedures, vital statistics etc of the Academy with other clients, families, friends, associates or agents pertaining to the Academy's business and activities.

9.4 - The Agent must ensure that it operates legally and complies with the laws applicable to the relevant countries, states, or territories and shall obtain from the local authorities, all necessary licenses, permissions or approvals to operate.

10. The Academy's Obligations **:**10.1 - Constantly inform the Agent of any new or additional programs and to keep informed of any amendments to the Academy's policies and procedures.

10.2 - To provide to the Agent all available promotional materials *(soft-copies)* pertaining to the course details and current fee structure.

10.3 - Advise the Agent when Courses are filled or when capacity is limited.

10.4 - The Academy will complete promptly all the necessary documentation i.e. students' record, recruitment application and placement offer and documents for Student Visa application

11. Indemnity : The Agent hereby indemnifies and to keep indemnified the Academy from any loss, damage and all liabilities resulting from any breach of this Agreement or any wrongful or negligent act or omission by the Agent. The Academy and all its employees or representatives will not entertain any form of compensation involved.

12.Confidentiality: Each party hereto undertakes to treat all information relating to the business of the other as confidential except in so far as may be necessary for the performance of any obligations of this agreement or to the extent that such information is generally available to the public or is required to be disclosed by any fiscal authority or by legal process. The parties agree that this obligation shall continue in force notwithstanding the termination of this agreement for any reason.

13. Others : 13.1 – A monthly rental (rate varies) will be charged to students requiring Hostel accommodation at The Academy. Rental may include bed, mattress, and personal wardrobe. Bed linens, bath towels and pillow will not be provided.

13.2 – The Academy Rules & Regulations must be observed and followed at all times while in the Academy or within the hostel.

14. Termination by Notice : 14.1 – Either party may terminate this agreement at any time by giving the other party three (3) months notice in writing. In the course of such early termination, the Agent shall be responsible or remain obligated untill all outstanding fees owed by their referred students are fully paid and settled.

14.2 - The Academy may terminate instantaneously this Agreement with written notice to the Agent, upon occurrence of any of the following;

a. In breach of any of the terms of this agreement, and in breach of confidentiality as mentioned in clause 12 above.
b. The agent tarnishes the reputation of the Academy in a manner that may cause the Academy to be brought into disrepute.

14.3 - Upon termination of this agreement, the Agent shall cease to use any marketing materials provided by the Academy and to return all such materials to the Academy within 7 days of the termination date.

14.4 - Any payment due to the Agent pertaining to students who were referred and enrolled prior to the termination of this agreement shall be paid upon full settlement of the course fees by the students as mentioned in Clause 6. However, the sum of commission payable shall depend on the student completing the programme fully or partially. In the case of the latter, the Academy may consider a pro-rated sum *(in proportion to the semester fees paid)*

15. Non-Disclosure of Company's Affairs : The Agent undertakes that it shall not at any time either after the execution of this agreement or after this agreement has expired and/or terminated, for any reasons whatsoever, divulge to any person or organisation, any media or bodies, and shall use their best endeavours to prevent the publication or disclosure of any confidential information in relation to The Academy or any of its Malaysian partners' affairs or business or finance or method of carrying on business or trade secret list of The Academy or any of its dealings, transactions or affairs and without prejudice to the generality of the foregoing in relation to The Academy's products, design, and technical information and other information relating to the said Products.

16. Arbitration : 16.1 - Any disputes arising from or in connection with this agreement and subsequent agreement/s shall be finally resolved in accordance with the rules of the Arbitration Foundation of Malaysia, by a single arbitrator appointed by the Academy.

16.2 - The provisions of this paragraph shall not preclude any party from obtaining interim relief on an urgent basis from a court of competent jurisdiction pending the decision of the arbitrator.

For The Academy	Agreed by the Agent:
_____	_____
Name: Dato' Michael Leong	Name: Mrs. Doan Bich Hanh
Designation: Executive Director	Designation: Director
Company : Tropicana Academy	Company :
Company Chop:	Company Chop:

ATTACHMENT A

Official Student Recruitment Agent Fee Structure – Valid till December 2025

For International Students

COURSE DURATION	RATE *(Ringgit Malaysia)* PER STUDENT PER COURSE DURATION				
	6 MONTHS	1 YEAR	18 MONTHS	24 MONTHS	WORKSHOP
RM	1,500	2,000	2,500	3,500	3,000
US$ *(at Prevalent Rate)*	$350.00	$470.00	$590.00	$825.00	$705.00

Incentive scheme for Agent who provide the following number per intake/batch:

05 - 09 students – an additional 5% per student from the 1st student

10 –19 students - an additional 10% per student from the 1st student

More than 20 students - an additional 15% per student from the 1st student

Note: All Fees are transacted in Ringgit Malaysia. Quoted rates in US$ are subjected to the prevalent rate at the time of enrolment.

ATTACHMENT B

HOSPITALITY PACKAGE PROGRAMME

1. **Certificate In Housekeeping (1 Year)**
2. **Certificate In Food & Beverage (1 Year)**

DURATION: 1 YEAR *(Optional 1 Year can be extended)*

Year 1 Tuition Fees :	US$2,600 (Pay After E-Visa Approved)
MISCELLANEOUS FEES	
- EMGS (student visa)	US$600. (Initial Payment)
- Registration Fees	US$250. (Pay After E-Visa Approved)
- International Student Processing & Admin	US$500. (Pay After E-Visa Approved)
TOTAL YEAR 1 PAYMENT	**US$3950.00**
Other Fees	US$80. (Airport Pickup)
First Week Accommodation	US$85. (1st Week Only)
Year 2 Certificate	US$2,000.
EMGS Fees (student visa)	US$ 600.
TOTAL YEAR 2 Fees	**US$2,600.**

APPRENTICESHIP PROGRAMME

HOTELS and F&B OUTLETS

BENEFITS

- Apprenticeship allowance - US$400. Per Month (*excluding overtime & negotiable*)
- Accommodation and duty meals are provided at selected outlets

WORK-BASED ASSIGNMENT PROGRAM

Terms And Conditions:

- Age -18 To 30 Years Old
- O-Levels or Year 11 equivalent (School Leaving Certificate required)
- English Competency - Able to Speak, Write and Comprehend
- All allowances shall be paid to Tropicana Academy (TASB) for disbursement.
- All Fees are transacted in Ringgit Malaysia. Quoted rates in US$ are subjected to the prevalent rate at the time of enrolment.